

WEBSITE DEVELOPMENT & MAINTENANCE AGREEMENT

Agreement Date: _____, 2025

PARTIES TO THIS AGREEMENT

SERVICE PROVIDER (Developer):

Name: Enock Kibe Ngunyi

Address: 7426 00100 Nairobi

Phone: 0735663656

Email: kibeenock7390@gmail.com

CLIENT:

Name: Mrs. Eunice Waweru

Organization: Workers Rights Watch

Address: P.O. Box 00232-1516, Ruiru, Kenya

Phone: +254(0)20-2605660 / +254(0)775366920

Email: info@workersrightswatch.org

1. PROJECT OVERVIEW

This Agreement is for the development and ongoing maintenance of a professional website for Workers Rights Watch, a registered society in Kenya.

Website URL: www.workersrightswatch.org (or as specified by Client)

Project Status: 95% Complete - Ready for final delivery upon payment

2. SCOPE OF WORK - WHAT'S DELIVERED

A. Website Development (Complete)

The Developer has completed a professional 10-page website including:

1. **Home Page** - Hero section, impact statistics, photo gallery, partner logos, live Twitter feed
2. **About Us Page** - Vision, mission, objectives, core values, organizational approach
3. **Our Team Page** - Leadership profiles, board members, interactive team bios
4. **Our Programs Page** - Complete program descriptions and initiatives
5. **Our Work Page** - Project highlights and case studies
6. **Resources Page** - Articles, reports (4 PDFs), videos, training manuals, photo gallery (12+ images)
7. **Activities Page** - Event showcases and community engagement
8. **Careers Page** - Job postings and volunteer application system
9. **Contact Page** - Contact form with email integration
10. **Donate Page** - Multi-currency donation system (Stripe, M-Pesa, PayPal integration ready)

B. Features & Functionality Delivered

- ✓ Mobile-responsive design (works on all devices)
- ✓ Dark/Light theme toggle
- ✓ Animated transitions and counters
- ✓ Photo galleries with lightbox viewer
- ✓ Document download system (PDF reports)
- ✓ Twitter/X feed integration (live tweets)
- ✓ Partner logo carousel (18+ organizations)
- ✓ Contact form with email notifications
- ✓ Job application system with CV upload
- ✓ Volunteer application system
- ✓ Search and filter functionality
- ✓ Multi-currency donation system (Stripe, M-Pesa, PayPal integration ready)
- ✓ SEO optimization (meta tags, sitemap, fast loading, structured data)
- ✓ Security features (SSL ready, form validation, spam protection)
- ✓ Email notification system (contact forms, applications)
- ✓ File upload system (CV/Resume handling)
- ✓ Image optimization and lazy loading
- ✓ Social media integration (Twitter/X feed, sharing buttons)
- ✓ Analytics ready (Google Analytics integration)
- ✓ Search functionality with category filtering
- ✓ Document management system (PDF downloads, online viewing)
- ✓ Interactive team profile modals
- ✓ Animated counters and statistics
- ✓ Partner logo carousel with hover effects
- ✓ Photo gallery with full-screen viewer and navigation

C. Technical Specifications

- Built with Next.js 15 (modern, fast, enterprise-grade)
- TypeScript for code reliability
- Fully responsive across all screen sizes
- Optimized for speed and performance
- Secure and scalable architecture

3. PRICING & PAYMENT TERMS

A. Development Fee (One-Time Payment)

Note: This is a custom website development project, not a basic template website. The cost reflects professional development work including 10 custom pages, advanced features, integrations, and modern design. Website development costs in Kenya range from KES 49,280 to KES 200,000+ depending on complexity and agency chosen. This investment represents mid-market pricing for custom development work.

Payment Schedule:

- First payment (50%): KES 42,500 - Due upon signing this agreement
- Second payment (50%): KES 42,500 - Due upon final delivery and approval
- Total: KES 85,000

Accepted payment methods: Bank Transfer or Cheque

B. Monthly Maintenance & SEO Services

Monthly Fee: KES 5,000 per month (Fixed rate for first 3 years)

Note: This monthly rate is fixed for the first three (3) years from the Maintenance Start Date. Beginning the first month of the fourth (4th) year (month 37), the monthly fee will increase by 10% to KES 5,500 and will remain fixed at that rate for the next 12 months, subject to further annual review.

What's Included:

- Security updates and monitoring
- Bug fixes and technical support (response within 48 hours)
- Content updates (up to 2 hours per month)
- Image uploads (up to 10 images per month)

- Performance optimization
- SEO services (keyword research, analytics, monthly reports)
- 99.9% uptime monitoring

Emergency Support:

- Emergency visits outside regular maintenance scope: KES 5,000 per visit
- Emergency support includes urgent fixes, critical bugs, or immediate assistance required outside normal business hours

Payment Terms:

- Due on the 1st day of each month
- Cancel with 30 days written notice
- Late payments incur 5% fee after 7 days

Maintenance Start Date: Upon website launch or _____, 2025

4. WHAT'S REMAINING

The following items require Client's action before final launch:

1. Payment Gateway Credentials (Client to provide within 14 days):

- Stripe Business Account credentials
- PayPal Business Account credentials

2. Developer's Responsibilities:

- Connect payment gateway accounts (Stripe and PayPal) (1-2 days)
- Test all donation flows (1-2 days)
- Final website launch (1 day)

Estimated Timeline: 1 week after Client provides credentials

B. M-Pesa Integration (Separate Agreement)

Note: M-Pesa integration is NOT included in this development fee. M-Pesa integration will be a separate service with separate pricing, to be agreed upon separately. The integration will be completed within 20 days from the date of separate agreement to allow ample time for testing. Once integrated, donors will be able to make donations via M-Pesa through the website.

C. Donation System Integration (Separate Agreement)

Note: The complete donation system integration (Stripe, M-Pesa, PayPal) is a separate service agreement. This current agreement covers the website development with the donation page structure ready for integration. The actual payment gateway connections and testing will be handled under a separate agreement with separate pricing.

5. TERMS & CONDITIONS

5.1 Payment Terms

- Development fee: 50% (KES 42,500) due upon signing, 50% (KES 42,500) due upon delivery
- Maintenance fees are due on the 1st day of each month
- Late payments incur a 5% late fee after 7 days
- Payments are non-refundable once work has commenced
- Emergency visits are billed separately at KES 5,000 per visit

5.2 Project Timeline

- Development: Complete (95%)
- Final setup: 1 week after payment and credentials provided
- Website launch: Upon Client approval

5.3 Intellectual Property & Ownership

- Upon full payment, all website code, design, and content ownership transfers to Client
- Client owns the website 100%
- Developer retains the right to showcase this project in portfolio
- Open-source libraries used remain under their respective licenses

5.4 Warranties & Support

Developer Warrants:

- Website is free from major defects
- All features function as described
- Code follows industry best practices
- Website is secure and optimized

Developer Does NOT Warrant:

- Website will be error-free 100% (no software is perfect)
- Compatibility with all future browser updates (covered by maintenance)
- Third-party service uptime (Stripe, PayPal, hosting providers)

Support Period:

- 30 days free bug fix support after launch
- After 30 days, support covered under maintenance agreement

5.5 What's NOT Included in Monthly Maintenance

The following are charged separately at KES 2,500-4,000 per hour:

- Major design changes or redesign
- New page creation
- New feature development
- Custom functionality additions
- Third-party integration changes (beyond initial setup)
- Training sessions (initial 2-hour handoff is included)

5.6 Independent Contractor

The Developer shall provide the Services to the Client as an independent contractor and not a servant, employee, partner or agent of the Client. Accordingly:

(a) The Developer agrees that the Client shall have no liability or responsibility for the payment of any statutory dues, employment insurance premiums or Employee Pension Plan contributions on any amounts paid by the Client to the Developer or amounts paid by the Developer to its contractors.

(b) The Developer is free to provide services to other clients, so long as there is no interference with the Developer's contractual obligations to the Client.

5.7 Maintenance Contract Terms

- Contract auto-renews monthly
- Client can cancel with 30 days written notice
- Developer can terminate for non-payment after 14 days
- Upon cancellation, website remains Client's property but no further support provided

5.8 Hosting & Domain

Hosting Provider:

- The website will remain hosted with the Client's existing hosting provider "Kenya Website for Logistics" (or as designated by Client).
- The Developer will coordinate deployment to the Client's hosting environment and provide technical assistance during launch.
- Uptime, server configuration, email delivery, and infrastructure-level issues remain the responsibility of the hosting provider.

Domain & DNS:

- Domain name registration and renewals are the Client's responsibility (estimated ~KES 2,500/year).
- The Developer will assist with DNS updates required for launch.

5.9 Confidentiality

Both parties agree to keep confidential information private:

- Client's business information, donor data, financial information
- Developer's code, methodologies, proprietary processes
- This agreement remains confidential

5.10 Liability & Indemnification

Developer's Liability is Limited to:

- Maximum: Total amount paid under this agreement
- Developer not liable for lost revenue, data loss, or indirect damages
- Client agrees to maintain regular backups (provided by Developer in maintenance)

Client Agrees:

- Website content provided by Client must not violate any laws or copyrights
- Client indemnifies Developer against claims arising from Client's content

5.11 Force Majeure

Neither party liable for delays caused by:

- Natural disasters, pandemics, war, civil unrest
- Internet/hosting service outages beyond Developer's control

- Third-party service failures (payment gateways, email services)

5.12 Dispute Resolution

Should any dispute arise between the parties in connection with this agreement or the performance of it:

- (a) The parties shall first attempt to resolve such disputes by negotiation in good faith.
- (b) Should the dispute not be resolved within thirty (30) days of such negotiation, the said dispute shall be solved in final manner through arbitration.
- (c) Where, in the event of a dispute arising out of or relating to this contract, the parties wish to seek an amicable settlement of that dispute by mediation, the mediation shall take place in accordance with the Nairobi Centre for International Arbitration – Mediation Rules as at present in force.

5.13 Governing Law

This Agreement will be ruled and governed in accordance with the laws of Kenya.

5.14 Changes & Amendments

- Any changes to this agreement must be in writing and signed by both parties
- Email agreements are acceptable if confirmed by both parties

5.15 Termination

Client May Terminate:

- For convenience with 30 days notice (maintenance only)
- For cause if Developer fails to deliver as agreed

Developer May Terminate:

- For non-payment after 14 days
- For Client breach of agreement terms

Upon Termination:

- All paid work remains Client's property
- Outstanding payments become immediately due
- Developer provides final backup of website

6. DELIVERABLES CHECKLIST

Upon signing and payment, Developer will deliver:

- ☐ Complete website source code (if requested)
- ☐ Access to website hosting and admin panels
- ☐ Documentation: Website guide (README) and user manual
- ☐ 2-hour training session on basic website updates
- ☐ Email setup and configuration
- ☐ Payment gateway setup (upon receiving credentials)
- ☐ Google Analytics setup
- ☐ 30-day free bug fix support

7. CLIENT RESPONSIBILITIES

Client agrees to:

- ☐ Provide payment as per payment schedule (50% on signing, 50% on delivery)
- ☐ Provide payment gateway credentials (Stripe and PayPal) within 14 days
- ☐ Review and approve final website before launch
- ☐ Provide feedback and responses within 5 business days
- ☐ Maintain confidentiality of admin access credentials
- ☐ Register domain name (if not already done)

8. DEVELOPER RESPONSIBILITIES

Developer agrees to:

- ☐ Deliver website as described in Section 2
- ☐ Connect payment gateways (Stripe and PayPal) upon receiving credentials
- ☐ Test all functionality before launch
- ☐ Provide training and documentation
- ☐ Respond to support requests within 48 hours (maintenance period)
- ☐ Maintain website security and performance (during maintenance)
- ☐ Provide monthly SEO reports (during maintenance)

9. ACCEPTANCE & APPROVAL

Client Approval Statement:

"I, Mrs. Eunice Waweru, on behalf of Workers Rights Watch, have reviewed the website and confirm that it meets the specifications outlined in this agreement. I approve the website for launch."

Website Approval:

- ☐ Approved - Ready for launch
- ☐ Minor changes needed (list below):

10. AGREEMENT ACCEPTANCE

By signing below, both parties agree to all terms and conditions in this Agreement.

DEVELOPER SIGNATURE

Developer Name: Enock Kibe Ngunyi

Signature: _____

Date: _____

ID/Passport Number: _____

CLIENT SIGNATURE

Client Name: Mrs. Eunice Waweru

Title: Executive Director, Workers Rights Watch

Signature: _____

Date: _____

Organization Stamp: (If available)

WITNESS (Optional but Recommended)

Witness Name: _____

Signature: _____

Date: _____

ID/Passport Number: _____

PAYMENT CONFIRMATION

Development Fee Confirmed: KES 85,000 (50% on signing, 50% on delivery)

First Payment Details:

- Amount: KES _____
- Date Paid: _____
- Payment Method: ☐ Bank Transfer ☐ Cheque
- Reference/Transaction ID: _____

Second Payment Details:

- Amount: KES _____
- Date Paid: _____
- Payment Method: ☐ Bank Transfer ☐ Cheque
- Reference/Transaction ID: _____

MAINTENANCE PAYMENT DETAILS

Monthly Fee: KES 5,000 per month (Fixed for first 3 years)

First Maintenance Payment Due: _____

Payment Method: ☐ Bank Transfer ☐ Cheque (recurring)

Emergency Visit Fee: KES 5,000 per visit (billed separately when needed)

Note: Monthly rate will increase by 10% to KES 5,500 starting month 37 (first month of 4th year).

IMPORTANT: Each party should keep a signed copy of this agreement for their records.

This agreement constitutes the entire agreement between the parties and supersedes all prior negotiations, representations, or agreements, whether written or oral.

This document is legally binding once signed by both parties.

END OF AGREEMENT

APPENDIX A: CONTACT INFORMATION FOR ONGOING SUPPORT

Developer Contact:

- Email: kibeenock7390@gmail.com
- Phone: 0735663656
- WhatsApp: 0735663656
- Business Hours: Monday-Friday, 9 AM - 6 PM EAT

Client Contact:

- Email: info@workersrightswatch.org
- Phone: +254(0)20-2605660 / +254(0)775366920
- Address: P.O. Box 00232-1516, Ruiru, Kenya

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